

FL-23-001062 MCBETH, AARON vs MCBETH, KERI – Respondent's Request for Order to Compel Discovery Responses, for Sanctions, Order Shortening Time, and Continuance of Trial – HEARING REQUIRED.

County: stanislaus

Division: Family Law

Department: 11

Hearing date: 2026-08-04

Motion: The Court has reviewed Respondent's Request for Order seeking to compel discovery responses, impose sanctions, and continue trial. The Court finds that several issues require clarification at the hearing before a ruling can be issued, including: 1. Whether Petitioner was properly served with the Second Set of Requests for Production of Documents and whether competent evidence establishing service has been submitted. 2. Whether any discovery responses have been served since the filing of the motion. 3. Whether the discovery requests, proofs of service, and meet-and-confer correspondence referenced in the moving papers have been filed and are available for judicial review. 4. Whether the shortened-time proceedings afforded Petitioner adequate notice and an opportunity to be heard. 5. Whether the requested sanctions of \$3,500 are adequately supported by admissible evidence and explanation of fees incurred. 6. Whether good cause exists to continue the trial currently scheduled for August 4, 2026, and if so, the appropriate length of any continuance. 7. Whether good cause exists to extend the discovery deadlines based on any continued trial date. The matter is therefore set for hearing. The Court intends to address the foregoing issues and hear from the parties before issuing a final ruling. The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13:

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1. Whether Petitioner was properly served with the Second Set of Requests for Production of Documents and whether competent evidence establishing service has been submitted.
2. Whether any discovery responses have been served since the filing of the motion.
3. Whether the discovery requests, proofs of service, and meet-and-confer correspondence referenced in the moving papers have been filed and are available for judicial review.
4. Whether the shortened-time proceedings afforded Petitioner adequate notice and an opportunity to be heard.
5. Whether the requested sanctions of \$3,500 are adequately supported by admissible evidence and explanation of fees incurred.

6. Whether good cause exists to continue the trial currently scheduled for August 4, 2026, and if so, the appropriate length of any continuance.

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